

Elements: A crime generally consists of four main parts: the actus reus, a mental state, causation, and concurrence.

To constitute an “**act**”, an act must be a voluntary bodily movement or, in some cases, an omission. To be guilty of an omission, defendant must have a legal duty to act, knowledge of the facts giving rise to the duty, and the ability to help.

At **Common Law**, mental states are categorized into four classes: **general intent** (defendant knows what he is doing, but may not intend a particular result); **specific intent** (defendant has the intent to act and the intent for a particular result); **malice** (international or reckless disregard of obvious/known risk); and **strict liability** (the act alone is sufficient). **New York** uses five categories: **Intentionally**/purposefully (meaning to); **knowingly**/willfully (awareness); **recklessly** (knowing and not caring); **negligently** (being stupid/should have known); and **strict liability** (statutory rape and narcotics weight).

Causation is an element of all result crimes. To be guilty of a “result” crime, Defendant must not only be the but for/actual cause (or accelerating cause) and the proximate/legal cause (natural and foreseeable consequences). **New York** has abandoned the Year and a Day doctrine.

Concurrence: the mental state and physical act must occur at the same time.

Degrees: In **New York**, crimes are categorized by “degrees.” It is a good idea to remember the second-degree elements and then add a degree if a **weapon** is used; a victim is **physical injured** (really hurts) or **seriously physically injured** (permanent or life threatening); or, in the case of money or theft crimes, **quantity**.

CRIMES AGAINST THE PERSON: At common law, **Battery** is an unlawful application of force to another that causes injury or offensive touching (general intent). There is no battery in **New York**.

At common law, **Assault** is either an attempted battery or placing someone in apprehension of battery. In **New York**, assault is intentionally injuring another person (merely placing someone in apprehension if called *menacing*). Second degree assault is intentionally causing serious physical injury. Thus, first degree assault is causing serious physical injury with a weapon and third degree assault is causing physical injury.

Common law recognized four types of killings: A person commits **Murder** where s/he causes the death of another person with malice aforethought. The mental state for murder may be: intent to **kill**, to inflict **serious physical injury**, or **extreme recklessness** (depraved heart); or **felony murder**. Later common law distinguished between degrees: first degree was premeditated and deliberate murder, while second degree murder was malice murder. The common law recognized *the doctrine of transferred intent*. **Voluntary manslaughter** is an intentional killing after “adequate provocation” (reasonable passion). To be guilty of voluntary manslaughter, defendant must be provoked, actually be provoked, and neither had the time nor actually “cooled off.”

Involuntary manslaughter encompasses killings with criminal negligence. **Felony murder**, *infra*.

In **New York**, killings are categorized as: intentional, unintentional, and felony murder.

Intentional killings are **murder**. *Second degree murder* is an intentional killing or a depraved indifference (“utter disregard for human life” or “brutal killing”) killing. First degree murder is an intentional killing with special circumstances (victim is a cop, killing is or witness intimidating, is part of a murder for hire, or part of a serious felony). Reasonable *extreme emotional disturbance* is an affirmative defense that may reduce the crime from second degree murder to first degree manslaughter.

In **New York**, **Unintentional killings** encompass reckless and negligent homicides. Where Defendant intends to seriously injure the victim and the victim dies (shot in the kneecap), Defendant is guilty of *first degree manslaughter*. Where Defendant is reckless (cleaning a knowingly loaded gun) or negligent (cleaning a gun Defendant does not know is loaded) and causes death, Defendant is guilty of second degree manslaughter.

Both the common law and **New York** recognize felony murder. Under **common law felony murder**, a defendant is liable for any death caused in the commission of or attempt to commit a felony (one year max). Common law felony recognizes **vicarious liability**, provided Defendant is guilty of the underlying felony, the felony is inherently dangerous (not larceny, forgery), satisfies the **independent felonious purpose** rule, occurs during the felony or immediate flight therefrom, it is foreseeable, and the victim is not a co-felon.

In **New York**, felony murder is an intentional/depravedly indifferent killing (2nd degree), which occurs during a **burglary, arson, robbery, kidnapping, forcible rape** or **escape**. However, a **New York** defendant may assert the “**Non-slayer**” affirmative defense if Defendant did not do the killing. The Non-slayer defense applies where Defendant did not participate in the homicidal act, and Defendant neither **had** a deadly weapon, **knew** his cohorts had a deadly weapon, nor had any **reason** to believe his co-felons had any **intent** to do anything likely to result in death.

There are a few additions in **New York**. Since New York does not have the death penalty, the distinction between first degree (life without parole) and second degree (25 years – life) is **penalty**. Killing of a police officer makes a crime “**aggravated**”: intentional killing is second degree murder, intentional killing of a cop is aggravated second degree murder (and so on for manslaughter and negligence). Additionally, drunk driving with a prior DWI conviction is first degree vehicular homicide, whereas no prior conviction is “**vehicular homicide**.”

At **Common law** (and, it appears, **New York**) **false imprisonment** is unlawful, nonconsensual confinement of another.

At common law, **kidnapping** was false imprisonment involving the moving or concealing of a victim in a secret place. In **New York**, it is “abducting someone” (second degree kidnapping). First degree kidnapping is **abduction** and a **ransom** request, **restraint** with intent to injure, or **death** (accidental: felony murder; intentional: first degree murder).

Forcible **rape** is nonconsensual sex by force, threat of force, or unconscious. It was not at common law (though is in **New York**(?)) gender neutral and not protected by marital immunity. Statutory rape is sex with someone underage (in **New York**, the age of consent is seventeen).

Property Crimes:

At **common law**, **Larceny** is the trespassory (wrongful and without permission) asportation of the personal property of another with the intent to permanently deprive. The key is possession – so, you can commit larceny against your property that someone else has property of. Under the “**continuing trespass**” doctrine, if the initial taking is wrongful and then I later decide to keep, then I can still be guilty of larceny. **Embezzlement** is the fraudulent conversion of the property of another by someone in lawful possession (control or discretion). It requires the *intent* to defraud – however, if you give it back it must be the exact property in the same condition. **False pretenses** is obtaining title to the personal property of another by an intentional false statement (past or present, not future) with the intent to defraud. A future statement is *caveat emptor*. If I only get possession, however, that is **larceny by trick**.

New York says Fuck That – it all **larceny**, distinguishable by degrees. 0 - \$999 (5th Degree), \$1000-\$2999 (4th degree), \$3000-\$4999 (3rd degree), \$5000-\$999,999 (2nd degree), \$1,000,000+ (1st degree). **Larceny is not the basis for felony murder**.

At common law, **robbery** is larceny from another’s person (stolen in your car while you’re in it) or presence by force or threat of force. In **New York**, (3rd degree) **robbery** is forcible stealing of personal property. Second degree is forcible stealing where **two** or more people are involved, a victim is **injured**, or the property stolen is a **car**. First degree robbery occurs where the victim is seriously injured or Defendant uses a loaded, operable firearm (otherwise 2nd degree). Any robbery is sufficient for *felony murder* here, however if someone is intentionally killed that is first degree murder.

Extortion at common law is larceny from another’s person or presence by threat of future harm.

Blackmail at common law is larceny by threat of embarrassment.

Receipt of stolen property requires knowledge that the property is stolen.

Possession of stolen property requires both knowledge that property is stolen and control (dominion, within reach) of it.

Forgery: making a false writing (or altering an existing one) with intent to defraud.

Uttering: offering a forged instrument with intent to defraud (e.g., use of fake ID)

At common law, **burglary** is the breaking (minimal force) and entering (crossing the plane) of the dwelling of another at night with (concurrence) the intent to commit a felony inside. In **New York**, 3rd degree burglary is entering or remaining unlawfully in any building with intent to commit any crime inside. 2nd degree burglary occurs if it is a **dwelling**, Defendant carries a

weapon, or victim is **injured**. 1st degree occurs where Defendant has **knowledge** it is a dwelling and someone gets **injured**. Any killing is felony second degree, intentional killing is 1st degree murder.

At common law, **arson** was the malicious (intentional or reckless) burning of the another's structure. In **New York**, fourth degree is reckless burning of the structure of another; third degree is the intentional burning; second degree is intentional burning when Defendant knows or should know someone is inside. First degree is second degree burning with an explosive/incendiary device. Any killing is felony second degree, intentional killing is first degree murder.

At **common law** and **New York** (it seems), an accomplice is one who aids or encourages another with the intent to encourage the crime. Mere presence, knowledge, or membership in a protected class is not sufficient to make one an "accomplice." Accomplices are guilty of the actual crime. At **common law**, if an accomplice merely encourages, but later changes his mind, he must **renounce/discourage**; however, if an accomplice **abets/aids**, he must make an affirmative effort to keep the crime from happening (stop it or call police). In **New York**, a defendant may withdraw only by taking a substantial step. **New York** recognizes the **accomplice witness rule** (Defendant cannot be convicted of a crime based upon only the uncorroborated testimony of an accomplice).

At common law, **solicitation** is asking someone to commit a crime with the intent that they do it.

At common law, **conspiracy** is an **agreement** between two or more people to commit a crime and an **overt** (minimal) act in furtherance of the crime. At common law, the agreement can be implied, but requires two guilty minds. If all co-conspirators are acquitted, then the last cannot be convicted of conspiracy. Co-conspirators can be vicariously liable for all **foreseeable** crimes committed in furtherance of the conspiracy. In **New York**, however, one can be convicted even if the other was just pretending and can be convicted, even if all others are acquitted. In **New York** there is **no vicarious liability** for conspiracy.

At common law and in **New York**, an attempt is an act with "dangerous proximity" to the completed crime (the MPC requires only "substantial step"). You may infer intent from the conduct. You may not attempt a reckless or negligence crime. **Factual impossibility** is not a defense at common law or in New York. **Legal impossibility** is a defense.

There was no withdrawal at common law for solicitation. In **New York**, Defendant may withdraw by pleading the *affirmative defense* of **renunciation**: voluntary and completely **renounces** and **prevents** the crime from happening. In addition, the renunciation must be motivated by a guilty conscience.

At **common law**, lesser included offenses **merge** with the greater offense; solicitation, attempt, and the actual crime merge, but conspiracy does not. In **New York**, attempt merges, but solicitation and conspiracy do not.

The **common law** recognizes three capacity defenses. **Insanity** (affirmative defense) under the **M'Naughten** rule is that as a result of the mental disease/defect, Defendant did not know the act

was wrong or did not know what he was doing. Under the **Irresistible impulse** test, Defendant cannot control his actions or conform them to law. Under the Durham test, the act is merely the result of disease/defect (even if Defendant could have resisted). Under the MPC, Defendant may either lack capacity to appreciate the criminality or conform conduct to the law. In **New York**, Defendant may plead insanity if he lacks substantial capacity **to know** or **appreciate the consequences** of his conduct or that his conduct was **wrong**.

At common law, **involuntary intoxication** is a defense to all crimes. Voluntary intoxication can be a defense if it prevents Defendant from forming the specific intent (but is not a defense to reckless conduct). In **New York**, it can be a defense to **intent** or **knowledge** crimes if it negates intent or knowledge (but no defense to recklessness or negligence crimes).

Under the **common law** defense of **infancy**, there was no criminal responsibility for those seven years and younger. There was a rebuttable presumption against criminal prosecution for those between 7+ - 14. And those over 14 were prosecuted as adults. In **New York**, 13+ y/o can be prosecuted for second degree murder (but not other serious crimes). 14 & 15 y/o can be prosecuted for serious crimes against persons or property. 16 y/o+ can be prosecuted for anything.

At common law, **self defense** may justify a crime. Non-deadly force in self defense is permitted where reasonably necessary to protect against immediate, unlawful force. Deadly force at common law and in **New York** is permitted against an **imminent threat** of death/serious bodily injury where the Defender is **without fault**. However, at common law, you need not retreat (under the “*True Man*” rule). Also, non-deadly force may be used to prevent a felony, and deadly force may be used to prevent a felony dangerous to human life.

In **New York**, if you can retreat in complete safety, you must, unless you are in your own home and you are not the initial aggressor. In addition, in **New York** if Defendant’s belief that self-defense is necessary, self defense is valid; if the belief is **unreasonable, it is murder**. Deadly force may be used to prevent burglary, rape, robbery or kidnapping (so long as it is the only way to keep the crime from happening). In **New York**, **the prosecution must prove** the Defendant’s belief was unreasonable, threat was not imminent, or Defendant could retreat.

At common law, **duress** exists where Defendant is forced to commit a crime under threat of imminent or serious bodily harm. It was not a defense to homicide. In **New York**, it is an affirmative defense and may be used as a defense to homicide.

To show **entrapment**, [Who?] must show the crime originated with the police and Defendant was not predisposed.

Mistake of law is not a defense, unless “**knowledge**” is an element of the defense.

At common law, reasonable **mistake of fact** is defense to any crime, except strict liability. Unreasonable mistakes are only defenses to specific intent crimes. In **New York**, **mistake of fact** is a defense if it negates the required mental state (knowledge or recklessness, but not negligence).